Security interest over Credit Support Amount held in a Euroclear account (or sub-division of a Euroclear account) in its own name for the account of the Pledgee (third party pledgeholder structure)

(ISDA Euroclear 2019 Collateral Transfer Agreement)
Multi-Regime Scope

[The pre-printed text from the ISDA-published form of this document has been removed, keeping the party information on page 1 and the elections paragraph containing the relevant information modeled in CDM. The full published form of this document template is available at www.isda.org.]

International Swaps and Derivatives Association, Inc.

2019 COLLATERAL TRANSFER AGREEMENT

for use with

Euroclear Bank collateral management documentation
for non-centrally cleared OTC derivatives

between

Goldman Stanley plc

("Party A")

and

Morgan Sterling Bank

(*Party B*)

dated August 15 2023

relating to the

ISDA Master Agreement

dated as of August 15 2023 between Party A and Party B.

1. ELECTIONS AND VARIABLES

Regime Table

For the purposes of this Agreement, the parties have specified the regulatory regimes (each a **Regime** and together the **Regimes**) applicable to them in their capacity as the Security-taker in the below table (the **Regime Table**). For the avoidance of doubt, any Regime that is specified as being applicable in the Regime Table shall not be construed as a representation, admission or acknowledgement that either party is actually regulated under such Regime.

Regime	Party A as the Security-taker (Party B as the Security-provider)	Party B as the Security-taker (Party A as the Security-provider)
EMIR	Not Applicable	Not Applicable
	SIMM Exception: Not Applicable	SIMM Exception: Not Applicable
Prudential	Not Applicable	Not Applicable
	SIMM Exception: Not Applicable	SIMM Exception: Not Applicable
CFTC	Not Applicable	Not Applicable
	SIMM Exception: Not Applicable	SIMM Exception: Not Applicable
SEC	Not Applicable	Not Applicable
	SIMM Exception: Not Applicable	SIMM Exception: Not Applicable
United Kingdom	Applicable	Applicable
	SIMM Exception: Applicable: Fallback to Mandatory Method	SIMM Exception: Applicable: Fallback to Mandatory Method
Canada	Not Applicable	Not Applicable
	SIMM Exception: Not Applicable	SIMM Exception: Not Applicable

Switzerland	Not Applicable	Not Applicable
	SIMM Exception: Not Applicable	SIMM Exception: Not Applicable
Japan	Not Applicable	Not Applicable
	SIMM Exception: Not Applicable	SIMM Exception: Not Applicable
Australia	Not Applicable	Not Applicable
	SIMM Exception: Not Applicable	SIMM Exception: Not Applicable
Hong Kong	Not Applicable	Not Applicable
	SIMM Exception: Not Applicable	SIMM Exception: Not Applicable

Regime Table Definitions

(a) **Fallback to Mandatory Method** means, if specified as applicable in the Regime Table with respect to a Regime, ISDA SIMM™ will be the Method applicable to such Regime, but if, to the extent that a party notifies the other that it is mandatory under such Regime for such notifying party to apply the Mandatory Method to one or more transaction types with respect to either the Security-provider's or the Security-taker's posting or collecting obligation, as applicable (specifying in such notice the relevant transaction types), then with effect from the later of (x) the date which is the 10th calendar day after such notice is effectively delivered and (y) the date specified in such notice as the date on which the Mandatory Method becomes mandatory under such Regime (and only in respect of Transactions of the relevant transaction type entered into after the later of the dates in (x) and (y)):

(i) SIMM Exception will be applicable solely with respect to such transaction types; and

(ii) the applicable Method for such transaction types will be the Mandatory Method.

(b) **Mandatory Method** means, if specified as applicable in the Regime Table with respect to a Regime, the Method applicable to such Regime is to determine the Margin Amount (IM) by reference to the methodology prescribed pursuant to such Regime which uses a standardised initial margin schedule (such that prescribed percentages are applied to notional amounts before being adjusted, including by a net-to-gross ratio (NGR)).

General Principles

Unless otherwise specified or agreed between the parties, the following principles (the **General Principles**) will apply for the purposes of this Agreement and the provisions of this Agreement shall be construed accordingly:

(a) One Way Provisions: One Way Provisions are: Not Applicable

(b) in respect of a Security-provider and its obligations to post Margin Amount (IM) hereunder, any reference to the term **Regime** or **Regimes** in this Agreement is to all Regimes that are specified as applicable in the Regime Table to the other party as the Security-taker; *provided* that each such Regime will, subject to sub-paragraph (c) below, be included only from the date that the applicable law requires the relevant Security-taker to collect and/or, if applicable, such Security-provider to post initial margin under such Regime (and only for as long as it does so);

(c) for the purposes of sub-paragraph (b) above, where one or more Regimes are considered to be the substitute for compliance with one or more other Regimes for the purposes of a posting obligation hereunder, all such Regime(s) will nevertheless continue to be applicable absent agreement in writing between the parties to the contrary;

(d) the parties acknowledge that the Security-provider may nevertheless be obliged to post to the Security-taker under a regulatory regime which is not specified as a Regime with respect to the Security-taker in the Regime Table. In the event that the Security-provider determines that such regulatory regime requires the Security-provider to post an additional amount to the Security-taker, the Security-provider may request that the Security-taker accept such additional amount and the Security-taker will use reasonable endeavours to accommodate such request;

(e) subject to sub-paragraph (f) below, ISDA SIMM™ is the specified **Method** for all Covered Transactions with respect to all Regimes (irrespective of asset class or, as applicable, category applicable to a Transaction under the relevant Regime), whereby:

(i) ISDA SIMM™ will refer to the version of ISDA SIMM™ applicable to the relevant Security-taker unless otherwise specified here: Not specified;

(ii) the margin period of risk will be as provided for in such version of ISDA SIMM™; and

(iii) the "SIMM Calculation Currency" (also known as "SIMM Reporting Currency") means:

(A) in respect of Party A and its calculations, the Base Currency; and

(B) in respect of Party B and its calculations, the Base Currency;

(f) if SIMM Exception is specified as applicable with respect to a Regime and a Security-taker in the Regime Table, then solely for the purposes of: (1) the relevant Security-provider's posting obligation to such Security-taker; and (2) Covered Transactions falling within the relevant specified asset class or, as applicable, category under the relevant Regime, the **Method** will instead be as specified in the Regime Table;

(g) for all Regimes and posting obligations hereunder:

(i) in respect of a Covered Transaction under a Regime which the parties agree constitutes a "cross-currency swap", obligations to exchange principal will be disregarded for the purpose of determining the Margin Amount (IM) with respect to such Regime; and

(ii) the following approaches apply for the purposes of calculations in respect of the related type of Covered Transaction:

(A) Unless otherwise specified below, the relevant sensitivities to equity indices, funds and ETFs are addressed by the standard preferred approach where the entire delta is put into the applicable asset class/category for equity indices, funds and ETFs.

If alternative approach is specified here, the parties agree that in respect of the relevant sensitivities, the delta is allocated back to individual equities in equity indices, funds and ETFs: Alternative approach.

(B) Unless otherwise specified below, the relevant sensitivities to commodity indices are addressed by the standard preferred approach where the entire delta is put into the applicable asset class/category for commodity indices.

If alternative approach is specified here, the parties agree that in respect of the relevant sensitivities, the delta is allocated back to individual commodities in commodity indices: Alternative approach.

Unless expressly agreed otherwise in writing, any failure by a party to use the applicable approach specified in this sub-paragraph (g) in its determination of the Margin Amount (IM) will not constitute an Event of Default, Potential Event of Default or Termination Event under the ISDA Master Agreement in respect of such party;

(h) if more than one Regime is specified in the Regime Table with respect to a Security-taker, then in respect of the Security-provider's obligations to post initial margin hereunder to such Security-taker:

(i) the Margin Amount (IM) determined as of an Observation Date with respect to a party as the Security-provider will be the Strictest Of; and

(ii) the Valuation Percentage and FX Haircut Percentage for all Regimes with respect to the Security-provider's posting hereunder will be the Strictest Of;

(i) subject to sub-paragraph (h) above, in respect of a Security-provider and its posting obligation, each **Valuation Percentage** and **FX Haircut Percentage** will be as specified in Annexes I & II to the CSA Terms and Conditions in relation to the relevant Secured Account, in each case, however defined therein and, if applicable, expressed in a "haircut" format as opposed to a "margin" format (as described at Paragraph 3.4(c) (*Calculations of Market Value and determination of Value*));

(j) upon the crediting by Euroclear of cash to a set of Secured Accounts in accordance with the Euroclear Agreements to satisfy the Security-provider's posting obligation hereunder, to the extent required by a Regime specified as applicable to its posting obligation, the relevant Security-provider will, within a reasonable period of time, credit its "Collateral Giver's Account" with sufficient Eligible Securities such that either Paragraph 5.6 (*Transfer of Distributions*) applies (in the case of cash which constitutes Cash Income only) or such item shall be transferred out of the Secured Accounts and replaced pursuant to Paragraph 3.5

(*Substitutions*) (in all other cases). For the avoidance of doubt, upon the expiry of such period, such cash shall not satisfy the Eligibility Requirements; and

(k) notwithstanding that a Regime is specified as not applicable in the Regime Table and that no initial margin amounts will be calculated for such Regime under this Agreement, the parties agree that, with respect to a party, **Regime** for the purposes of the definition of "Regulatory Event" and the proviso in the definition of "ISDA SIMM™" will include such Regime if it is specified as a "Substituted Regime" for that party below:

With respect to Party A, each of the following is a **Substituted Regime**: None specified

With respect to Party B, each of the following is a **Substituted Regime**: None specified

Where:

Australia means Australian Prudential Standard CPS 226 Margining and risk mitigation for non-centrally cleared derivatives published by the Australian Prudential Regulation Authority on December 6, 2016.

Canada means Guideline E-22, Margin Requirements for Non-Centrally Cleared Derivatives issued by the Canadian Office of the Superintendent of Financial Institutions in February 2016.

CEA means the U.S. Commodity Exchange Act.

CFTC means the margin requirements adopted by the U.S. Commodity Futures Trading Commission pursuant to CEA § 4s(e).

EMIR means Regulation (EU) No 648/2012 of the European Parliament and of the Council of 4 July 2012 on OTC derivatives, central counterparties and trade repositories (including the EMIR RTS).

EMIR RTS means the published regulatory technical standards on risk-mitigation techniques for OTC-derivative contracts not cleared by a CCP under Article 11(15) of EMIR.

Exchange Act means the U.S. Securities Exchange Act of 1934.

Hong Kong means Chapter CR-G-14 "Non-centrally Cleared OTC Derivatives Transactions – Margin and Other Risk Mitigation Standards" in the Banking Supervisory Policy Manual issued by the Hong Kong Monetary Authority.

ISDA SIMM™ means, where specified as the applicable Method in respect of a Regime, that the initial margin amount for the Covered Transactions in the relevant asset class or, as applicable, category under the relevant Regime will be determined through use of ISDA SIMM™ as published by ISDA; *provided* that (A) with respect to a Security-taker, if approval of a particular version of ISDA SIMM™ by a governmental or regulatory authority is required under law applicable to such party in respect of a Regime, ISDA SIMM™ will mean the particular version of ISDA SIMM™ subject to an initial application for approval and, following initial approval, the most recently approved (even if subsequently withdrawn) for use by such party by the applicable governmental or regulatory authority or (B) if such model approval is not required, the version of ISDA SIMM™ used will be the latest published model for which the implementation deadline designated by ISDA has passed.

Japan means the margin rules adopted by the Financial Services Agency of Japan pursuant to Article 40, Item 2 of the Financial Instruments and Exchange Act (*kin'yuu shouhin torihiki hou*) (Act No. 25 of 1948) and by the Ministry of Agriculture, Forestry and Fisheries and the Ministry of Economy, Trade and Industry pursuant to the Commodity Derivatives Act (*shouhin sakimono torihiki hou*) (Act No. 239 of 1950) (including their subordinated regulations and the related supervisory guidelines).

Prudential means the margin requirements adopted by a "prudential regulator", (as defined in CEA § 1a(39)) pursuant to CEA § 4s(e) and Exchange Act § 15F(e).

SEC means the margin requirements adopted by the U.S. Securities and Exchange Commission pursuant to Exchange Act § 15F(e).

Singapore means the Guidelines on Margin Requirements for Non-centrally Cleared OTC Derivatives Contracts issued by the Monetary Authority of Singapore (MAS) pursuant to section 321 of the Securities and Futures Act, Chapter 289 of Singapore.

Strictest Of means:

(a) in respect of the Margin Amount (IM) applicable to a Security-provider's posting obligation hereunder, that:

(i) a Margin Amount (IM) will be determined in respect of each Regime applicable to such posting obligation pursuant to the Method specified as applicable to each such Regime (whereby such amount will be determined for each such Regime solely by reference to the applicable Covered Transactions under such Regime); and

(ii) the Margin Amount (IM) to be used for the purposes of this Agreement will be the greatest Margin Amount (IM) determined under limb (i) above; and

(b) in respect of Valuation Percentages and FX Haircut Percentages applicable to a Security-provider's posting obligation hereunder, that:

(i) the Valuation Percentage to be applied to an item of Eligible Collateral will be the lowest Valuation Percentage specified for such item in accordance with General Principle (i) in respect of such Security-provider; *provided* that, if at any time such Valuation Percentage is greater than the maximum permitted valuation percentage (prescribed or implied) for such item under the requirements of all Regimes then the Valuation Percentage with respect to such item and such party (as the Security-provider) will be such maximum permitted valuation percentage; and

(ii) the FX Haircut Percentage will be the highest haircut percentage specified in accordance with General Principle (i) in respect of such Security-provider; *provided* that, if at any time such FX Haircut Percentage is less than the highest haircut percentage applicable under all Regimes for a currency mismatch with the Termination Currency applicable to the relevant Security-taker, the FX Haircut Percentage relating to such posting obligation will be such highest haircut percentage.

The parties will, as soon as reasonably practicable following the request of either party in relation to a set of Secured Accounts and a related Security-provider and its posting obligation, submit matching instructions to Euroclear in order to update Annexes I & II to the relevant CSA Terms and Conditions to the extent any such percentages in respect of such posting obligation change.

Switzerland means the margin rules adopted by the Swiss Federal Council pursuant to Article 110-111 of the Financial Market Infrastructure Act as well as Articles 100 to 107 and Annexes 3 to 5 of the Financial Market Infrastructure Ordinance.

United Kingdom means EMIR (including, for the avoidance of doubt, the EMIR RTS) as it forms part of UK domestic law by virtue of section 3 of the European Union (Withdrawal) Act 2018 (as amended from time to time) (the "**EUWA**") (including any amendments made to such legislation when it is brought into UK domestic law pursuant to section 8 of the EUWA or any regulations made thereunder).

1.1 ***Base Currency***

Base Currency means: United States Dollars (**USD**).

1.2 ***Covered Transactions***

The term **Covered Transactions** as used in this Agreement means, in respect of a Regime, any outstanding Transaction that is of a type which is, when entered into, and which is, as of any date of determination, subject to law applicable to either party requiring the collection or delivery of initial margin under such Regime.

For the purposes of the foregoing, a Transaction will be deemed to be entered into if an amendment, novation or other event occurs with respect to such Transaction such that either party is required to collect or deliver initial margin in respect of such Transaction under the relevant Regime.

1.3 ***Credit Support Obligations***

(a) ***Selection of Margin Approach***. The parties hereby agree to implement the following Margin Approach: Distinct Margin Flow (IM) Approach.

(b) ***Thresholds (IM); Minimum Transfer Amount***

(i) **Minimum Transfer Amount** means with respect to Party A at any time, USD 200,000, unless otherwise agreed between the parties; and

Minimum Transfer Amount means with respect to Party B at any time, USD 200,000, unless otherwise agreed between the parties;

provided that, in the case of either Party A or Pary B, if the Credit Support Amount applicable at such time with respect to such party as the Security-provider is zero, the Minimum Transfer Amount with respect to the other party as the Security-taker shall be zero.

(ii) **Threshold (IM)** means with respect to Party A, zero, unless otherwise agreed between the parties; and

Threshold (IM) means with respect to Party B, zero, unless otherwise agreed between the parties.

1.4 ***Valuation and Timing***

(a) **Calculation Agent (IM)** is: Party A

(b) **Collateral Valuation Agent** has the meaning given to such term in Paragraph 12 (*Definitions*), unless otherwise specified here:

(i) in respect of Party A as Security-provider and its posting obligation: *Not Specified.*

(ii) in respect of Party B as Security-provider and its posting obligation: *Not Specified.*

(c) **Designated City** means, with respect to each party, each city, region, or country specified below:

(i) Party A: London; and

(ii) Party B: London.

(d) **Credit Support Amount Calculation Time** has the meaning specified below:

In respect of a party (or the Calculation Agent (IM) (if applicable)), the time as of which such party (or the Calculation Agent (IM) (if applicable)) computes its end of day valuations of derivatives transactions in the ordinary course of its business (or such other commercially reasonable convenient time on the relevant day as such party (or the Calculation Agent (IM) (if applicable)) may determine).

(e) **Notification Time** means:

(i) with respect to Party A acting in its capacity as the Security-provider and Party B acting in its capacity as the Security-taker: 1:00 pm (London time), on a Transfer Date,

(ii) with respect to Party B acting in its capacity as the Security-provider and Party A acting in its capacity as the Security-taker: 1:00 pm (London time), on a Transfer Date,

provided that, if specified as applicable here, in relation to Paragraphs 3.3(b), 3.3(c), 4.1(a) and 4.1(b), the Notification Time shall be the latest time by which Euroclear will accept instructions from the Security-taker or Security-provider, as the case may be, in order to be able to effect transfer of Eligible Collateral or Posted Collateral, as the case may be, on the relevant Transfer Date: Applicable.

1.5 ***Conditions Precedent***

(a) The provisions of Paragraph 3.1 (*Conditions Precedent*) will apply, unless otherwise specified here:

Not Specified.

(b) **Specified Condition and Access Condition**. For purposes of the provisions of Paragraph 3.1 (*Conditions Precedent*) and the definition of Relevant Event, a Security-provider Access Event or an Enforcement Event with respect to the other party shall constitute a **Specified Condition**. For the purposes of the definitions of Enforcement Event and Security-provider Access Event, the following Termination Events (to the extent that such Termination Events are applicable in respect of the relevant party under the ISDA Master Agreement) will each be an **Access Condition** with respect to the party so specified if: (i) that party is an Affected

Party with respect to such Termination Event; and (ii) all Transactions are Affected Transactions:

	Party A	**Party B**
Illegality	☒	☒
Force Majeure Event	☒	☒
Tax Event	☒	☒
Tax Event Upon Merger	☒	☒
Credit Event Upon Merger	☒	☒
Additional Termination Event(s)	☒	☒

1.6 ***Dispute Resolution.***

(a) **Resolution Time** means 1:00 pm (London time) on the Local Business Day following the date on which the notice is given that gives rise to a dispute under Paragraph 4 (*Dispute Resolution*).

(b) **Recalculation Date** means the Transfer Date that gives rise to the dispute under Paragraph 4 (*Dispute Resolution*), *provided* that, if a subsequent Transfer Date occurs under Paragraph 2 (*Credit Support Obligations*) prior to the resolution of the dispute, the "**Recalculation Date**" means the most recent Transfer Date under Paragraph 2 (*Credit Support Obligations*).

(c) **Recalculation of Credit Support Amount**. For the purpose of Paragraph 4.1(d)(i) (*Disputed Calculations or Valuations*), the Credit Support Amount will be calculated as follows: the parties agree to consult (including, without limitation, exchanging reasonable details of their calculations and any supporting data as part of the consultation process; *provided* that the parties will not be required to exchange any proprietary or confidential information) in good faith and in a commercially reasonable and timely manner to resolve the dispute and agree on the amount of the relevant Credit Support Amount. Each party (or the Calculation Agent (IM) (if applicable)) will recalculate the Credit Support Amount using the amount agreed by the parties.

For the avoidance of doubt, any dispute resolution with respect to the specific calculation of Margin Amount (IA) will be governed by and subject to the dispute resolution provisions of the relevant Other CSA and not under Paragraph 4 (Dispute Resolution).

(d) **Recalculation of Market Value**. For the purpose of Paragraph 4.1(d)(ii) (*Disputed Calculations or Valuations*), the Market Value of Posted Collateral will be calculated in accordance with the following procedure:

With respect to Party A acting in its capacity as the Security-provider and Party B acting in its capacity as the Security-taker:

Consultation Procedure.

With respect to Party B acting in its capacity as the Security-provider and Party A acting in its capacity as the Security-taker:

Consultation Procedure.

For the purposes hereof:

Consultation Procedure means the parties agree to consult (including, without limitation, exchanging reasonable details of their calculations and any supporting data as part of the consultation process; *provided* that the parties will not be required to exchange any proprietary or confidential information) in good faith and in a commercially reasonable and timely manner to resolve the dispute and agree on the Market Value. The Collateral Valuation Agent will recalculate related amounts using such amount agreed by the parties.

Other Regulatory CSA Procedure means the procedure specified in an Other Regulatory CSA (as defined in Paragraph 13.14(b) (*Amendment to "Minimum Transfer Amount"*) below) for the calculation of the Market Value (or its equivalent under such Other Regulatory CSA) of collateral in the event of a dispute involving such Market Value thereunder.

(e) **Alternative**. The provisions of Paragraph 4 (*Dispute Resolution*) will apply.

1.7 ***Euroclear Risk***

The provisions of Paragraph 5.2 (*Euroclear Risk*) will apply unless otherwise specified below:

Not specified.

1.8 ***Euroclear Event***

If specified as applicable here, the provisions of this Paragraph 13.8 (*Euroclear Event*) will apply with respect to each party as Security-provider:

Euroclear Event is *Applicable*.

If a Euroclear Event has occurred and is continuing after the EE End Date, it will constitute an Additional Termination Event under the ISDA Master Agreement and for purposes of such Additional Termination Event:

(a) each Covered Transaction will be an Affected Transaction; and

(b) both the Security-provider and the Security-taker will be Affected Parties.

For as long as the Euroclear Event is continuing but on or prior to the relevant EE End Date, the Security-provider will attempt to identify a replacement custodian which is reasonably acceptable to the Security-taker and the parties agree to use reasonable endeavours to negotiate in good faith a successor control agreement with a replacement custodian and implement such amendments to the terms of this Agreement (and any related Security Agreement) and/or enter into such additional documents (including, if required, a new collateral transfer agreement and/or security agreement) as are reasonably necessary.

Following a Euroclear Event under limb (3), if Euroclear ceases to perform collateral management services under the Euroclear Agreements, any failure to make a transfer of Eligible Collateral, Posted Collateral or Distributions as required under this Agreement shall not constitute an Event of Default in respect of either party.

If Euroclear Event is applicable, any event or circumstance that constitutes or gives rise to a Euroclear Event will not also constitute or give rise to an Event of Default under Section 5(a)(iii) of the ISDA Master Agreement.

As used above:

Euroclear Event means, with respect to the Security-provider and its posting obligation hereunder:

(1) any failure of Euroclear to comply with instructions sent by the Security-provider in accordance with the relevant Euroclear Agreements (or deemed to be given by the Security-provider in accordance with the AutoSelect Methodology pursuant to the Collateral Service Agreement) to effect any transfer obligation of the Security-provider in accordance with this Agreement (other than any such failure caused solely by the action or inaction of the Security-provider, including a failure by the Security-provider to have sufficient "Eligible Securities" or "Eligible Cash" credited to its "Collateral Giver's Account");

(2) Euroclear ceases to comply with or perform, or is otherwise unable to comply with or perform, any agreement or obligation to be complied with or performed by it in accordance with the relevant Euroclear Agreements (including determining the Value or Market Value of Eligible Collateral);

(3) notice by Euroclear is given to the parties to terminate any of the Euroclear Agreements or any of the Euroclear Agreements expires or terminates, whether in accordance with the terms thereof or otherwise (unless caused by a breach of covenant under Paragraph 7.1(c) or 7.1(d) (*Restriction on exercise of unilateral rights under Euroclear Agreements*) or where such termination is the result of the provision of matching instructions by the Security-provider and Security-taker);

(4) Euroclear disaffirms, disclaims, repudiates or rejects, in whole or in part, or challenges the validity of any Euroclear Agreement;

(5) Euroclear makes a unilateral amendment to the terms of any of the Euroclear Agreements or its status otherwise changes, in either case resulting in either of the parties ceasing to be in compliance with its regulatory obligations as determined by such party acting in good faith and in a commercially reasonable manner; or

EE End Date means, in relation to a Euroclear Event, the earlier to occur of:

(a) (i) other than in the case of a Euroclear Event with respect to limb (3) of the definition of Euroclear Event (a **Euroclear Resignation Event**), the day falling 90 calendar days after the occurrence of such event;

(ii) in the case of a Euroclear Resignation Event where advance notice is given in accordance with Section 12(c) of the relevant SPPA Terms and Conditions, the later of:

(A) the date the notice is given; and

(B) the 28th calendar day to fall prior to the date on which the relevant Single Pledgor Pledged Account Agreement will terminate in accordance with its terms with respect to such notice (such date of termination under the relevant Single Pledgor Pledged Account Agreement being the **Release Date**);

provided that, if:

(x) an Early Termination Date has been designated as a result of a Euroclear Resignation Event; and

(y) only one party has effectively provided a statement (the **Timely Statement**) to the other party pursuant to Section 6(d) of the ISDA Master Agreement on the later of (I) the date falling 18 calendar days prior to the Release Date and

(II) the 2nd Local Business Day after the date on which notification of such Timely Statement to the other party is effective,

then, notwithstanding the provisions of Section 6(e)(ii)(2) (*Two Affected Parties*) of the ISDA Master Agreement, the amount payable under Section 6(e) shall be determined and be payable solely on the basis of the Timely Statement (as if, for all purposes, the party which has provided the Timely Statement were the party which is not the Affected Party and the other party were the sole Affected Party); or

(iii) in case of a Euroclear Resignation Event where there is no advance notice in accordance with the relevant Euroclear Agreement, the date the relevant Euroclear Agreement expires or terminates; and

(b) effective delivery of a written notice by a party that a Regulatory Event has occurred with respect to such party in respect of such Euroclear Event (specifying in reasonable detail in such notice the nature of such Regulatory Event).

Regulatory Event means, in respect of a party and a Euroclear Event, that:

(a) such party has received notice in writing from the relevant governmental or regulatory authority with proper jurisdiction that it has ceased or will cease to comply with its regulatory obligations under any Regime; or

(b) a relevant governmental or regulatory authority with proper jurisdiction has made a public statement to the effect of (a),

in each case, as a result of the occurrence of such Euroclear Event.

1.9 ***Euroclear Agreements as Credit Support Documents***

(a) With respect to Party A acting in its capacity as the Security-provider and Party B acting in its capacity as the Security-taker: the Euroclear Agreements are not Credit Support Documents.

(b) With respect to Party B acting in its capacity as the Security-provider and Party A acting in its capacity as the Security-taker: the Euroclear Agreements are not Credit Support Documents.

1.10 ***Collateral Access Breach Additional Termination Event***

If specified as applicable here, has the meaning specified below: Collateral Access Breach is Applicable.

Collateral Access Breach means a party hereto (the **Breaching Party**) (i) breaches one or more of the covenants specified in the relevant Security Agreement related to the delivery of a Notice of Exclusive Control or a Security-provider Access Notice or (ii) acting in its capacity as a Security-taker, delivers a notice to Euroclear instructing Euroclear to deliver Posted Collateral to it or anyone other than the Security-provider or at the Security-provider's direction prior to the occurrence of an Enforcement Event.

If Collateral Access Breach is applicable and a Collateral Access Breach has occurred and is continuing after the CAB End Date, it will constitute an Additional Termination Event under the ISDA Master Agreement and for purposes of such Additional Termination Event:

(a) each Transaction will be an Affected Transaction; and

(b) the Breaching Party will be the sole Affected Party.

CAB End Date means the 2nd Local Business Day following the date on which the related Collateral Access Breach occurs.

If Collateral Access Breach is applicable, any event or circumstance that constitutes or gives rise to a Collateral Access Breach will not constitute or give rise to an Event of Default under Section 5(a)(iii) of the ISDA Master Agreement.

1.11 ***Additional information relating to Regulatory Compliance and Concentration Limits***

If specified as applicable here, each party will as soon as reasonably practicable following a request by the other party provide such information as to its classification and/or status relating to collateral eligibility requirements under law applicable to such other party requiring the collection and/or posting of initial margin (including, without limitation, and by way of example, whether it is an institution identified as a "G-SII" or "O-SII" under paragraph 3, Article 8 of the EMIR RTS) as may be reasonably required from time to time: Additional information relating to Regulatory Compliance and Concentration Limits is Applicable.

Unless expressly agreed otherwise in writing, any misrepresentation with respect to such information will not constitute an Event of Default, Potential Event of Default or Termination Event under the ISDA Master Agreement in respect of such party.

1.12 ***Demands and Notices***

All demands, specifications and notices under this Agreement will be made pursuant to Section 12 (*Notices*) of the ISDA Master Agreement, unless otherwise specified here:

(a) in respect of Party A:

Address: 88 Alderwick Street, 10th Floor, London, EC3A 8BF, United Kingdom

Attention: Collateral Management Team

Telephone: +44 (0)20 7012 4413

Email: derivatives.notices@goldmanstanley.com

(b) in respect of Party B:

Address: 5 Kingswell Yard, Blackwater Quay, London, EC9X 5BF, United Kingdom

Attention: Derivatives Operations

Telephone: +44 (0)20 76321 5021

Email: derivatives.notices@morgansterling.com

1.13 ***Amendment to "Termination Currency"***. The definition of "Termination Currency" has the meaning specified in the Schedule to the ISDA Master Agreement, unless a currency is specified below as the "Termination Currency":

The definition of "Termination Currency" in the ISDA Master Agreement will be amended with effect from the date of this Agreement to mean:

(a) with respect to Party A, GBP; and

(b) with respect to Party B, EUR.

The parties hereby acknowledge and agree that, for the purposes of determining the amount due under Section 6(e) of the ISDA Master Agreement or, as applicable, the Early Termination Amount, "Termination Currency" shall mean:

(i) in relation to a calculation pursuant to either:

(A) Section 6(e)(i) in respect of an Early Termination Date resulting from an Event of Default; or

(B) Section 6(e)(ii)(1) in respect of an Early Termination Date arising from a Termination Event where there is one Affected Party,

the Termination Currency specified in respect of the party which is either the Non-defaulting Party or the party which is not the Affected Party, as applicable; and

(ii) in relation to a calculation pursuant to Section 6(e)(ii)(2) in respect of an Early Termination Date resulting from a Termination Event where there are two Affected Parties, USD, and

in each case, "Termination Currency Equivalent" shall be construed accordingly.

1.14 ***Amendment to "Minimum Transfer Amount"***

(a) The definition of "Minimum Transfer Amount" in any Other Regulatory CSA has the meaning specified in such Other Regulatory CSA, unless an amount is specified below as the "Minimum Transfer Amount".

Amendment to "Minimum Transfer Amount" is Not Applicable.

(b) **Other Regulatory CSA** means an Other CSA in respect of which some or all Transactions margined thereunder are subject to the margining obligations under one or more Regimes or Substituted Regimes.

1.15 ***Interpretation***. The provisions of Paragraph 1.6(a) (*Interpretation*) will apply unless otherwise specified below:

Not Specified.

1.16 ***Process Agent***

For the purpose of Paragraph 11.2(b) (*Service of Process*) of this Agreement:

(a) Party A appoints as its Process Agent: The entity appointed as process agent under the Schedule to the ISDA Master Agreement.

(b) Party B appoints as its Process Agent: The entity appointed as process agent under the Schedule to the ISDA Master Agreement.

1.17 ***Identity of Security-provider and Security-taker***

If "One Way Provisions" are specified as applicable under the General Principles, the following provisions will apply:

The term "Security-provider" as used in this Agreement means the Posting Party only and the term "Security-taker" as used in this Agreement means the party who is not the Posting Party (the **Other Party**) and the remaining provisions of the Agreement shall be construed accordingly.

In particular, but without limitation:

(i) only the Other Party will (A) benefit from the security interest created by the relevant Security Agreement in respect of the Posting Party and (B) have the right to require a transfer of a Delivery Amount under Paragraph 2.1 (*Delivery Amount*); and

(ii) the Other Party does not undertake any of the covenants or grant any of the rights with respect to itself or its property that it would otherwise undertake or grant as the Security-provider under this Agreement or a Security Agreement.

1.18 ***Loss of Required Model Approval***

If ISDA SIMM™ or another model, including a model operated by a third-party vendor or the other party, is to be used for any purposes hereunder and a party (i) does not receive approval (where at the date of this Agreement the model is subject to an initial application for approval), (ii) loses an approval required from any governmental or regulatory authority for such use or (iii) such use is otherwise prohibited by a governmental or regulatory authority, then it will not constitute an Event of Default, Potential Event of Default or Termination Event under the ISDA Master Agreement and shall not affect the applicable Method with respect to any Regime except to the extent (if any) specified in the Regime Table.

1.19 ***Jurisdiction Specific Terms***

(a) If this Agreement is governed by and construed in accordance with English law, the following provision will apply:

Contracts (Rights of Third Parties) Act 1999. A person who is not a party to this Agreement shall not have any rights under the Contracts (Rights of Third Parties) Act 1999 to enforce, or enjoy the benefit of, any term of this Agreement. This does not affect any right or remedy of a third party which exists, or is available, apart from the Contracts (Rights of Third Parties) Act 1999.

(b) If this Agreement is governed by and construed in accordance with the laws of the State of New York (without reference to choice of law doctrine) and Jury Waiver is specified as applicable below, the following provision will apply:

EACH PARTY WAIVES, TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, ANY RIGHT IT MAY HAVE TO A TRIAL BY JURY IN RESPECT OF ANY SUIT, ACTION OR PROCEEDING RELATING TO THIS AGREEMENT. EACH PARTY ACKNOWLEDGES THAT IT AND THE OTHER PARTY HAVE BEEN INDUCED TO ENTER INTO THIS AGREEMENT, BY AMONG OTHER THINGS, THE MUTUAL WAIVERS AND CERTIFICATIONS IN THIS WAIVER OF TRIAL BY JURY PROVISION.

For the purpose of this Paragraph 13.19(b) (Jurisdiction Specified Terms), "Jury Waiver" is Not Applicable.

(c) The provisions (the **CTA Japanese Collateral Provisions**) in the Recommended Amendment Provisions for the ISDA Euroclear Collateral Transfer Agreement (Subject to New York Law) and the ISDA Euroclear Collateral Transfer Agreement (Subject to English Law) with respect to Japanese Collateral ("*Shichiken*") (2018 version) will be incorporated herein as Paragraph 13.19(c) if specified as applicable here: the CTA Japanese Collateral Provisions are Applicable.

1.20 ***Amendments***

Not specified

1.21 ***Additional Terms***

Not specified